



Special Terms and Conditions

applicable to the Use of the Port of Hamburg by

Seagoing Vessels

in all Types of Traffic

and other Watercrafts if they are deployed in Maritime Shipping

Special Terms and Conditions applicable to Maritime Shipping

(STC-Maritime)

Effective as of 01 January 2026

Notice:

In the event of any inconsistency or conflict between the German and the English version, the German version shall prevail.

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Definition and Interpretation of Terms

In addition to the terms used in the Port GTC the terms used in these Special Terms and Conditions have the definitions and meanings as shown in the table below:

Term	Definition and Meaning
Inland voyage	Voyage of a watercraft within the seafaring border (seafaring border as defined in section 1 of the German Law of the Flag [Flaggenrechtsverordnung])
Environmental Ship Index, ESI-Air	index value to determine the air quality of ship emissions that ranges from zero to 100
Environmental Ship Index, ESI-Noise	index value to determine surface noise emissions that ranges from zero to 100
Environmental Ship Index, ESI@berth	index value to determine the air quality of ship emissions at berth per call that ranges from zero to 150.
Green Award	certificate awarded by the independent non-profit Green Award foundation, Rotterdam, The Netherlands
ESI website	as defined in 4.1.1.1
Port fee declaration	as defined in 5.1
Port Dues Office (portdues@hpa.hamburg.de)	office of the HPA that is in charge of Port Users' port fee declarations, self-declarations (Inland-shipping), notices, applications for rebates / discounts and other enquiries concerning the General Port Terms and Conditions [Hafen-AGB] that apply to seagoing and inland vessels.
IAPH database	as defined in 4.1.1.1
IAPP	as defined in 2.1.1
ITC 69	as defined in 2.1.2
Liner service	as defined in 2.1.4
London Convention	as defined in 2.1.2
North Sea resorts traffic	liner service passenger vessels that carry persons from / to Hamburg to the German North Sea resorts beyond the sea border, Heligoland or the East Frisian and North Frisian Islands. Only watercrafts are eligible that are not equipped with passenger cabins and whose cargo – excluding hand luggage and mail – weighs less than 10 tonnes.
Open-top container ships	ships that carry their entire cargo load in containers and are constructed like an open "U". They are fitted with a double bottom and cell guides without hatch covers. The open container stowage space must be at least 66.7% of the total hatch area.
MUST HAVE web portal for seagoing vessels	as defined in 5.3
Tier standard	Tier standard in accordance with IAPP
Tramp vessel service	as defined in 2.1.4

The subsequent provisions define in more detail the provisions of the General Terms and Conditions applicable to the Use of the Port of Hamburg by Seagoing Vessels in all Types of Traffic and other Watercrafts if they are deployed in Maritime Shipping.

If inland vessels are deployed in maritime shipping, the provisions of these Special Terms and Conditions applicable to Maritime Shipping and the Schedule of Fees and Charges - Maritime Shipping apply with the following proviso: If an inland vessel has a valid combined-fee ticket for the entire duration of her sea voyage, the portion of the price that is in excess of the combined fee will be based on to determine the sea voyage fee. The basis of assessment for passenger watercrafts is a day ticket and in the remaining shipping categories the basis of assessment is a saver-tariff 5-day ticket.

1 Grouping of Watercrafts into Price Categories

Watercrafts are grouped into the price categories of the Schedule of Fees and Charges - Maritime Shipping based on the criteria listed below. Watercrafts that are no seagoing vessels are grouped into the respective price category in accordance with the rules applicable to seagoing vessels.

Price Category 11: Oil tankers

Oil tankers are ships which are described as such in Form B, Supplement to the International Oil Pollution Prevention Certificate (IOPP), of the revised Annex I to MARPOL 73/78 (International Convention for the Prevention of Pollution by Oil).

Price Category 12: Watercrafts carrying other, mostly liquid bulks, chemicals and liquefied gases

This category comprises, for instance, cargo vessels carrying chemicals, gases and other liquid cargoes, which are not classified as “oil tankers” and predominantly carry liquid bulks.

In particular these are ships predominantly carrying liquid bulks, which

- a. have been issued an IOPP certificate in accordance with Form A (Record of Construction and Equipment for Ships other than Oil Tankers), or
- b. are subject to the Regulations for the Prevention of Pollution by Noxious Liquid Substances in Bulk in accordance with the revised Annex II to MARPOL 73/78 and the International Bulk Chemical Code (IBC Code) respectively, or which
- c. are subject to the IGC Code (International Code for the Construction and Equipment of Ships Carrying Liquefied Gases in Bulk).

Price Category 21: Watercrafts mostly carrying dry bulks / bulkers

This category comprises, for instance, cargo vessels carrying:

- a. Suction goods / agri-bulk (e.g. oil seeds, fertiliser, grain/cereals)
- b. Grab goods (e.g. coal, ore, scrap metal)
- c. Different types of bulk cargo, e.g. oil/bulk/ore – ships (OBO) if the goods are predominantly dry.

Price Category 31: Container ships

To be grouped into this category, this type of ship must be fully equipped with container cell guides.

Price Category 32: Car carriers

To be grouped into this category, this type of ship must be hulled almost completely. Furthermore, it is crucial that the cargo of these ships is loaded or unloaded exclusively by rolling it through bow ports, side doors or stern flaps. These vessels are fitted with closed decks which are not usually sub-divided and generally run the entire length of the ship. The type-relevant requirements are met, for example, by car carriers (PCC (Pure Car Carrier) and PCTC (Pure Car and Truck Carrier)).

Price Category 33: RoRo container ships (ConRo)

To be grouped into this category, ships must be less fully hulled than car carriers and they must be equipped with at least three RoRo loading decks, one on top of the other. Furthermore, it is crucial that the cargo of these ships is handled partly through bow ports, side doors or stern flaps and it is important that containers or other general cargoes are loaded or unloaded vertically (LoLo procedure) with deck or quay cranes. The type-relevant requirements are met, for example, by RoRo container ships (ConRo ships) fitted with container cell guides below deck and/or on deck.

Price Category 34: RoRo / multi-purpose carriers

To be grouped into this category, ships must be less fully hulled than car carriers and ConRo ships and/or fitted with utmost two RoRo loading decks, one on top of the other. Furthermore, it is crucial that the cargo of these ships is handled partly through bow ports, side gates or stern flaps and it is important that other general cargo is loaded or unloaded vertically (LoLo procedure).

The type-relevant requirements are met, for example, by heavy-cargo carriers with RoRo facilities and ConRo vessels with just one or two RoRo loading decks, one on top of the other.

Price Category 35: Combined passenger/ RoRo ferries (Ro/Pax)

To be grouped into this category, this type of ship must be hulled almost completely. As a shuttle service crossing waterways the ship regularly calls just one other port and regularly transports cargo that can be transferred fast as well as persons and rolling goods, including rail-bound wagons.

Price Category 36: Passenger vessels/ cruise ships

To be grouped into this category, the profit-making purpose of ships must be the transport of persons, irrespective of whether persons are actually carried or passengers disembark/embark. The journey and/or voyage itself generally takes place for touristic purposes. These ships regularly transport cargo only to provide for their passengers. This category includes event ships.

Passenger-only vessels and **day-trip boats** that are not usually equipped with passenger cabins must be distinguished from cruise ships - also referred to as **passenger cabin vessels** - which usually have passenger cabins. Day-trip boats are grouped into a price category irrespective of whether they actually cross the sea border or not.

Day-trip boats that provide regular ferry services in accordance with a timetable published on the internet and allow passengers to board or alight in the Port of Hamburg and in at least one other port are boats that, in this type of traffic, have called at a port no fewer than four times per each calendar week (Monday - Sunday).

Trips not published in the timetable and/or trips that are not open to everyone, for example additional charter boat tours, will be charged like day-trip boats.

Day-trip boats serving **North Sea resorts** - also called North Sea resorts traffic - are grouped into a sub-category of price category 36. Such boats either pay fees by call or monthly fees.

Price Category 37: Other cargo vessels

This category contains all types of cargo vessels and cargo watercrafts that are not listed in one of the categories above.

In particular this category comprises the following watercrafts:

- a. Reefer ships: carriers equipped with permanently installed cooling aggregates
- b. Heavy-cargo carriers or multi-purpose carriers without RoRo facilities or semi-containerships
- c. Pallet carriers or barge carriers
- d. Fishing boats
- e. Load-carrying / transport barges
- f. Load-carrying / transport pontoons and seagoing floating docks
- g. Other watercrafts which, due to their respective use of the port, are deployed in maritime shipping.

Price Category 38: Other commercial watercrafts and offshore shipping

Watercrafts listed under this category are crafts that are no cargo vessels or passenger vessels and that are intended for deployment in maritime shipping. These may be electricity-generating watercrafts, or watercrafts deployed in offshore shipping or in the offshore industry to install and supply offshore wind farms or oil platforms, or dredgers. Their regular profit-making purpose is not the same as that of common commercial vessels. If they carry passengers, their profit-making purpose is not of a touristic nature but, for example, exploration and/or the transport of crews.

In particular this category comprises

- a. **Installation watercrafts.** They include in particular specialised ships or self-propelled platforms such as, for instance, installation vessels, crane ships, drill ships, offshore watercrafts, etc.
- b. **Auxiliary installation watercrafts.** They include, e.g., floating cranes, equipment towed by push convoys or tug convoys such as work pontoons, work barges, etc.
- c. **Operation and service watercrafts.** They usually include multi-functional watercrafts that can be deployed independent of their actual purpose. Types of deployment are, e.g., exploration, securing, supply, repair, construction work, transport of materials and persons.
- d. **Seagoing tug boats and push boats.** This category comprises, for instance
 - deep-sea tug boats (deployed, e.g., to tow disabled ships)
 - anchor-handling tug boats (e.g. to tow or supply oil platforms)
 - salvage tug boats (e.g. operating as emergency tow vessels)
 - harbour tug boats, tug boats to manoeuvre ships and tug boats providing assistance (e.g. to tow, push and press ships, pontoons or barges) with a bollard pull of at least 15 tonnes.
- e. **Watercrafts generating green power.** Only watercrafts that generate electricity from alternative eco-friendly fuels fall under this category.
- f. **Dredgers.** They usually include watercrafts fitted with special equipment to dredge, flush or level ports, rivers or sea bays. The purpose of these watercrafts

is to deepen and/or widen water bodies; they are not deployed to extract mass raw materials.

Price Category 39: Sports and recreational boats / yachts

Watercrafts used for sporting and recreational purposes, including watercrafts operated commercially for the purpose of training people in handling sports boats. This includes yachts. Watercrafts will be grouped into this category if they are seagoing watercrafts.

2 Port Fees and Charges

2.1 Port Fee

Seagoing vessels in all types of traffic and other watercrafts deployed in maritime shipping that use the port must pay a port fee in accordance with the respective price category of the Schedule of Fees and Charges - Maritime Shipping. The port fee is calculated based on up to two fees/charges components which are added up:

2.1.1 Port fee environmental component

The port fee environmental component is the portion of the port fee determined based on environmental factors. The basis to calculate the port fee environmental component is a dimensionless amount determined per each price category.

This will then be multiplied by a percentage as defined in the Schedule of Fees and Charges - Maritime Shipping, which results from the respective grouping of the ship as per the ship's emission level (Tier). Proof must be provided in the form of a valid International Air Pollution Prevention Certificate (**IAPP**) in accordance with IMO Resolution MEPC.176(58). The basis for this calculation is the most polluting engine installed and/or used in the respective ship during the entire port stay. The applicable standards are "without" (Tier 0), Tier I, Tier II, Tier III, "exception" and "non-motorised" (non-self-propelled watercrafts).

The "exception" standard applies as outlined below:

- a. Watercrafts listed in price category 39 that are shorter than 24m and serve recreational purposes only;
- b. Watercrafts with diesel engines installed on watercraft types with a total engine power of less than 750 kW if proof is provided to and accepted by the office in charge of issuing and/or monitoring IAPP certificates that the respective watercraft cannot meet Tier I, II or III standards due to design- or construction-related restrictions. Such proof and the confirmation by the office in charge must be presented to the HPA as otherwise the watercraft will be classified as "without".

Watercrafts not fitted with engines are classified as "non-motorised". No separate proof is required; no surcharge or deduction applies.

If no IAPP proof is provided or proof without Tier standard (Tier 0) is submitted and no exception applies or if the watercraft is not engine-powered, the port fee environmental component will be calculated based on the "without" Tier standard.

The sum of the environmental component calculated and classified as mentioned above is the basis for possible further reductions and rebates/discounts.

To vessels with keels laid on or after 01 January 2021 that call at Hamburg the following applies:

If they are obligated to present an IAPP certificate, i.e. if they are engine-powered and do not fall into the “exception” category, the HPA will base on a Tier III standard in relation to their call at and stay in the port as provided for in the regulations for operating in the North Sea and Baltic Sea Nitrogen Emission Control Area (NECA).

To vessels with keels laid before or on 31 December 2020 that call at Hamburg the following applies:

Occasionally, several Tier-standard boxes are ticked on the IAPP certificate under one and/or both the “berth operation” (usually auxiliary engines) and the “passage to the open sea” (usually main engines) category. If Port Users intend to provide proof that all the engines used by them within the port boundaries at the same time **solely** achieved the cleanest Tier standard, they can apply accordingly and submit the respective proof (e.g. conclusive extracts from the engine log book). To process the application, the HPA will charge processing fees as set forth in 2.3.1 General Terms and Conditions [AGB].

Under the simplified procedure proof can also be provided in the form of a valid entry in the ESI database. No additional processing fees will be charged provided that the lowest IAPP emission level is at least Tier I and that, if the ship is fitted with engines of both

- IAPP Tier II and Tier III standards the ESI NO_x value is > 53.33 or of
- IAPP Tier I and Tier II standards the ESI NO_x value is > 15.29.

2.1.2 Port fee GT component

The port fee GT component is the portion of the port fee determined based on the GT and the cubic capacity of a watercraft respectively or and/or the measurement result determined based on the International Convention on Tonnage Measurement of Ships (**London Convention**) of 23 June 1969 (BGBl. [Federal Law Gazette] 1975 II, p. 67). The basis of the GT is the International Tonnage Certificate (1969) (**ITC 69**). If no ITC 69 has been submitted, the HPA will determine the GT in a manner common in the sector. For open-top container ships the reduced GT will be based on if proof in the form of a valid ITC has been provided.

2.1.3 How the port fee is calculated

In the price categories 11, 12, 21, 31, 34 and 37 the two components of the port fee are determined progressively based on GT levels. The GT of a ship is assigned to the respective price categories on a pro rata basis, whereby each category comes with its own rate per GT (see Schedule of Fees and Charges - Maritime Shipping). The total amount per each component is the sum of the pro-rated amounts. The amounts due for the remaining price categories are determined based on a fixed rate per GT, which is applied to the entire GT of a ship within the respective price category.

2.1.4 Special port fee classification criteria

In some price categories of the Schedule of Fees and Charges - Maritime Shipping fees/charges components are calculated based on types of traffic.

Types of traffic:

- a. **Liner service:** regular, not just sporadic, general services from and to Hamburg, which runs, and is proven running, according to a published sailing schedule within a defined shipping area. The ports of call or port groups must be listed by name in the sailing schedule. For the purpose of this provision **sailing schedules** are the sailing times as per the DVZ shipping list, shipping line sailing schedules, sailing lists and master/long-term schedules published in the shipping industry. The respective liner service is operated by a shipping company that accepts general cargo bookings at liner service conditions and liner service rates in all ports or port groups called in accordance with the sailing schedule and transports these goods.
So-called extra loaders / extra calls, ad-hoc calls or inducement calls must also meet the requirements mentioned above. In order to be categorised as liner service within the meaning of the above definition, they must be made under an existing service that regularly calls at Hamburg (sailing schedule as defined above).
- b. **Tramp vessel services / non-liner services:** traffic which is not covered by liner services as defined in point a. above, i.e. which in accordance with the master schedule does not form an integral part of the respective service.

2.2 Demurrage charges

Seagoing vessels and watercrafts deployed in maritime shipping that use the port for more than 120 hours are subject to demurrage charges for any use of the port in excess of this period of time as set out in the Schedule of Fees and Charges - Maritime Shipping. The same applies to watercrafts for which a port-fee tariff period has been chosen (e.g. price category 38 BAG and monthly tariffs applicable to North Sea resorts traffic).

2.3 HPA-berth fees

The HPA charges HPA-berth fees per each docking as set out in the Schedule of Fees and Charges - Maritime Shipping applicable to seagoing vessels and watercrafts deployed in maritime shipping

- for the direct or indirect use of the quay facilities, jetties, piers and dolphins expanded, operated and/or maintained by the HPA;
- for the purpose of handling cargo or embarking and disembarking passengers /persons or
- for the use of berths designated by the HPA as waiting berths only (no handling of cargo).

These public-berth fees do not cover the use of the facilities as permanent berth or permanent overnight berth and the use of the facilities operated by CGH. CGH imposes its own fees and charges.

3 Surcharge on Port Fees and Charges

3.1 Harbour's birthday surcharge

The Schedule of Fees and Charges - Maritime Shipping lists the "harbour's birthday" surcharge for the port fee GT component (see Schedule of Fees and Charges - Maritime Shipping, tariff surcharge 205). This surcharge is due for ships listed under price category 36K (cruise ships).

4 Discounts/rebates on Port Fees and Charges

4.1 Port fee discounts/rebates

Depending on the price category, the Schedule of Fees and Charges - Maritime Shipping, lists discounts on the port fee environmental component to reward environmentally conscious behaviour (see 4.1.1), discounts on the port fee GT component (see 4.1.2) as well as rebates (see 4.1.3).

4.1.1 Port fee environmental component discounts to reward particularly environmentally conscious behaviour

To protect the climate and improve the quality of life of Hamburg's citizens the HPA takes account of environmental factors when calculating the port fee. The aim is to reward Port Users that display environmentally conscious behaviour.

A basic fee will be charged within the scope of the environmental component (see Schedule of Fees and Charges - Maritime Shipping, special tariff 110) and the ship will be classified as per IAPP emission levels (see Schedule of Fees and Charges - Maritime Shipping, special tariff 115). Based on that discounts on the port fee environmental component will be granted if the requirements below are met and the respective watercraft is eligible for the discounts offered.

The HPA may temporarily stop or permanently terminate the environmental incentive schemes below. This may in particular be the case if websites, documents, certificates, index values, assessment criteria or other data relied on to calculate the respective discount change or if potential budgets, originally reserved for this particular incentive, are depleted early.

For watercrafts whose tariff incorporates more than one call, e.g. price categories 36S and/or 38 BAG, the values/scores and certificates valid at the beginning of the tariff period will be based on. If no proof is produced for that period, no discount will be granted for the entire tariff period.

4.1.1.1 ESI air discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 140)

This discount on the port fee environmental component is granted for watercrafts that are particularly low on emissions in relation to air quality based on the Environmental Ship Index (here: ESI air). The HPA relies on the database of the International Association of Ports and Harbours (**IAPH database**), checks whether there is an entry on the respective watercraft in the database and verifies the content of the entry.

More information about how to register a ship is available at www.environmentalshipindex.org or <https://sustainableworldports.org/environmental-ship-index-esi/> (**ESI website**).

ESI air scores take account of onboard shore power equipment and the verifiable use of scrubbers and/or SCR systems. The ESI air score is the sum of the watercraft's ESI NOx, ESI SOx, ESI CO₂ and ESI OPS sub-scores (onshore power supply).

If Port Users have entered their watercraft in the IAPH database, they do not need to apply for the discount with the HPA or apply for it in the port fee declaration. At the beginning of each quarter the HPA, as the grantor of the incentive, will access the information stored in the IAPH database and base on it to determine the applicable discount in the following manner:

Based on their ESI air score (Environmental Ship Index Air) ships that call at the port within the score validity period will be granted a discount on the sub-total of the port fee environmental component as follows:

- | | | | |
|------|-------------------------------|-----------------------------|-------|
| i. | ESI air score 20 up to < 25 = | 0.35% discount, maximally € | 175 |
| ii. | ESI air score 25 up to < 35 = | 0.7% discount, maximally € | 350 |
| iii. | ESI air score 35 up to < 50 = | 3.5% discount, maximally € | 700 |
| iv. | ESI air score ≥ 50 = | 7% discount, maximally € | 1,050 |

4.1.1.2 4.1.1.2 ESI noise discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 141)

This discount on the port fee environmental component is granted for watercrafts that are particularly low on surface noise emissions based on the Environmental Ship Index (here: ESI noise).

The ESI noise score is based on the noise emitted from watercrafts in two different frequency ranges. It is determined based on the watercraft's ESI L_{WA} , ESI $L_{WA\leq 160Hz}$ and the noise measurement report.

The registration of the watercraft and data access to ESI noise scores follow the same procedure as described in 4.1.1.1 above.

Based on their ESI noise score (Environmental Ship Index Noise) ships that call at the port within the score validity period will be granted a discount on the sub-total of the port fee environmental component as follows:

- | | | | |
|------|---------------------------------|------------------------------|-----|
| i. | ESI noise score 40 up to < 45 = | 0.15 % discount, maximally € | 75 |
| ii. | ESI noise score 45 up to < 55 = | 0.3 % discount, maximally € | 150 |
| iii. | ESI noise score 55 up to < 70 = | 1.5 % discount, maximally € | 300 |
| iv. | ESI noise score ≥ 70 | = 3 % discount, maximally € | 450 |

4.1.1.3 Green Award discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 145)

This discount on the port fee environmental component is granted for Green Award certified watercrafts that fall under price categories 11 and 12. To be eligible for the discount, a valid certificate issued by the Green Award foundation must be submitted together with the port fee declaration.

4.1.2 Discounts on the port fee GT component

The Schedule of Fees and Charges lists various discounts on the port fee GT component. Below are the eligibility requirements and calculation of the discount:

4.1.2.1 Inland voyage discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 200)

Price categories 11, 12, 21, 31, 36 K, 38 BSF, 38 SCH, 38 STR and 39: This discount is granted for traffic from and to Hamburg to and from ports within the seafaring border. More details are available under

https://www.gesetze-im-internet.de/binschuo2018anh_i/BinSchUO2018Anh_I.pdf
as well as at

<https://www.gesetze-im-internet.de/flrv/BJNR013890990.html>

4.1.2.2 Cap discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 210)

This discount is granted for price category 31 (special tariff 210). For GT values in excess of the GT values mentioned in these price categories no port fee is due for the GT portion of the port fee (port fee GT component).

4.1.2.3 Open-top container ship discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 215)

This discount is granted for ships listed under price categories 31 (container ships) and 33 (ConRo ships).

4.1.2.4 Container ship shore power discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 217)

This discount is granted for ships listed under price category 31 (full container ships). It is limited in time and applies to calls up until (and including) 31 December 2026 if the ship, while berthing at the port, has received not less than 10 MWh of environmentally friendly shore power per each call from the HPA.

4.1.2.5 Second call discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 221)

Price categories 11, 12, 21 and 37T (221): granted for watercrafts listed under the price categories mentioned above if they call again at the Port of Hamburg within 120 hours (equivalent to 5 days) after leaving it. The discount will be granted only if the ship has not called at any other port for commercial purposes in between and if the same Port User (beneficiary) is liable to pay the port fee.

4.1.2.6 Low-season discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 230)

This discount is granted for ships listed under price category 36K, which call at Hamburg in the period from November to February.

4.1.2.7 Shoulder season discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 231)

This discount is granted for ships listed under price category 36K, which call at Hamburg in the months of March and/or October.

4.1.2.8 Mini-cruise discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 233)

This discount is granted for ships listed under price category 36K if they call again at Hamburg in the period from April to September or in December and paid the port fee when they last called. The discount will be granted

- i. either under special tariff 233.3 if the period between departure and next call is less than 3 days (max. 72 hours), or
- ii. under special tariff 233.5, if the period between departure and next call is less than 5 days (max. 120 hours).

4.1.2.9 Repair discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 260)

This discount is granted for watercrafts listed under the price categories mentioned above for single calls by watercrafts that are in the Port of Hamburg only to have

repair work carried out in repair shops. Port Users must provide appropriate proof to the HPA in the form of a certificate issued by the repair shop.

4.1.2.10 Time in the shipyard discount (see Schedule of Fees and Charges - Maritime, Shipping special tariff 265)

This discount is granted for watercrafts listed under the price categories mentioned above for single calls by watercrafts insofar as they exclusively dock at a shipyard. Cargo watercrafts or passenger-carrying watercrafts are not permitted to handle cargo or carry passengers.

The Port User must submit to the HPA as proof a certification issued by the shipyard.

4.1.2.11 Quantum discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 280)

Area of validity / eligible price categories

The special tariff exclusively applies to the price categories

- 31 (full container ships) and
- 32, 33 and 34 (car carriers, ConRo and RoRo) and
- 36 K (cruise ships in maritime traffic)

for port calls along all shipping routes by seagoing vessels in these price categories.

Content and calculation of the reduction

This discount will be granted for calls from 01 January 2026. Port users do not need to apply for it. The discount will be granted as a percentage and in steps. The steps will be calculated for the above-mentioned

- cargo vessels based on the accumulated GT paid per calendar year
- cruise ships based on the accumulated eligible calls per calendar year.

These GT and calls respectively will be counted separately per special-tariff price category for the respective previous calendar year and separately per each beneficiary.

Ships that belong to an economic unit or any other type of co-operation that operates more than one shipping company or brand will also be counted separately as mentioned above.

Step	If, in the previous calendar year, the total GT-related port fees paid for calls in price category 31 seagoing traffic were:	then the following discounts in % on GT for current calls apply
3	> 25 million GT, or	7.5%
2	> 10 million GT and ≤ 25 million GT, or	5.0%
1	> 1.5 million GT and ≤ 10 million GT	2.5%

Step	If, in the previous calendar year, the total GT-related port fees paid for calls in price categories 32 or 33 or 34 were:	then the following discounts in % on GT for current calls apply
3	> 5 million GT, or	5.0%
2	> 3 million GT and ≤ 5 million GT, or	3.0%

1	> 0.5 million GT and ≤ 3 million GT	1.0%
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Step	If, in the previous calendar year, the total call-related port fees paid for calls in price category 36 K were:	then the following discounts in % on the (subtotal) GT for current calls apply
5	≥ 75 calls, or	25%
4	≥ 30 calls and ≤ 74 calls, or	20%
3	≥ 12 calls and ≤ 29 calls, or	15%
2	≥ 9 calls and ≤ 11 calls, or	10%
1	≥ 5 calls and ≤ 8 calls	5%

No quantity discount will be granted for calls for which the port fees payable in accordance with special tariff 260 (repair) or special tariff 265 (time in the shipyard) were reduced or for calls that did not serve any commercial purposes.

4.1.3 Rebates

Rebates will be granted in principle without the need to apply for them. It is not necessary to submit proof that the requirements to be granted the rebate have been met unless the Port Dues Office specifically asks for it.

4.1.3.1 ESI@Berth rebate for cruise ships, price category 36 K (special tariff 142)

This rebate on port fees will be temporarily granted for the transmission of environmental emissions data to a database operated by IAPH while at the port.

Registration details, data access details and FAQs are set out in the processes described in 4.1.1.1.

The link is: www.environmentalshipindex.org/info?module=AtBerth.

Following the end of the 2026 calendar year, the Port Dues Office will grant and refund a rebate as stated in the schedule of fees and charges for each call at the port registered in the ESI database (ESI@berth report).

Under a project the rebate will initially be granted for calls up to 31 December 2026. It will only apply to the price category mentioned above and only to vessels under that price category that participate in the ESI@Berth project, and which had paid higher port fees per call than the rebate per call might account for.

4.2 Demurrage charge discount

4.2.1 Cap discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 350)

The basis of assessment to calculate the demurrage charges for the price categories mentioned is the reduced GT. No demurrage charges are payable on the GT portions of the demurrage charges (GT component) for GT in excess of the GT values stated in the Schedule of Fees and Charges - Maritime Shipping, special tariff 210.

4.2.2 Open-top container ship discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 355)

This discount is granted for container ships and ConRo ships. The respective reduced GT will be based on to calculate the demurrage charges if a valid ITC has been submitted as proof.

4.2.3 Repair discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 360)

This discount is granted for watercrafts listed in the price categories mentioned above for the period they are in the Port of Hamburg to have repair work carried out by repair shops. Port Users must provide proof to the HPA in the form of a certificate issued by the repair shop.

4.2.4 Time in the shipyard discount (see Schedule of Fees and Charges - Maritime Shipping, special tariff 365)

This discount is granted for watercrafts listed in the price categories mentioned above for the period they are in the shipyard for repair work.

5 Port Users' Duty to co-operate when Seagoing Vessels and Watercrafts deployed in Maritime Shipping use the Port

5.1 Port fee declaration

Port Users must transmit to the Port Dues Office of the HPA all data required to calculate the port fees and charges for the use of the port by **seagoing vessels** as well as all data which the HPA collects under the German Traffic Statistics Act [VerKStatG] as amended (**port fee declaration**). This duty to transmit the data as required applies irrespective of whether cargo is handled, passengers are carried or special tariffs apply.

The reporting criteria arise from the data fields of the MUST-HAVE web portal. Within the volumes handled cargo is always categorised according to the cargo groups handled. The volumes handled will be measured in tonnes, including packaging (tare), and taken account of separated by unloading and loading.

If push convoys and/or tug convoys use the port, Port Users in command of the self-propelled watercraft must submit a separate port fee declaration for each watercraft of the convoy.

The use of the port by **other watercrafts** that are not seagoing vessels, which however are deployed in maritime shipping, is subject to the provisions on the duty to co-operate and the reporting provisions laid down in the Special Terms and Conditions applicable to Inland Shipping.

For watercrafts for which optional tariffs for longer periods of use are available Port Users must, at the beginning of the tariff period, submit to the Port Dues Office a binding, explicit declaration by e-mail, in which they must

- stipulate the tariff period and
- name the beneficiary as well as
- the party liable for payment.

Once a tariff period has been chosen, it cannot be changed at all. If the port was used before a tariff period has been chosen, any such use will be invoiced as single call.

5.2 Time limit

The port fee declaration must be transmitted to the HPA immediately, latest however within **5 working** days after leaving the port area.

5.3 Options to transmit the port fee declaration

Port Users must electronically transmit the port fee declaration. The following transmission options are available:

- a. Direct entry of the required data on the **MUST-HAVE** web portal for seagoing vessels (Maritime User Service Tool for HAMBURG VESSEL calls) at www.must-have.dakosy.de.
- b. Automated transmission of the required data to the HPA (including access to the web portal mentioned under letter a.) via IMP platform offered by DAKOSY AG (www.dakosy.de).
- c. Direct communication of the required data via EDI to the MUST-HAVE interface, including access to the data via the web portal mentioned under letter a.

If data are transmitted using the options mentioned under b. and c., additional agreements between the Port User and the respective service provider may be necessary. In addition, costs may be incurred, which the respective Port User must bear.

5.4 Documents to be submitted

Irrespective of the transmission option used and other data required a copy of the:

- tonnage certificate
- IAPP certificate including appendices and
- for ships carrying liquid bulks a copy of a valid, fully completed IOPP certificate, including attachments

must be submitted.

Port Users may be required to submit additional documents in accordance with the regulations mentioned above.

5.5 Calculation of the port fees and charges if Port Users fail to co-operate

If Port Users are in breach of their duty to co-operate, they owe the HPA port fees and charges under these Special Terms and Conditions applicable to Maritime Shipping based on the highest tariff of the respective price category. If applicable, as to the port fee this will be the tramp vessel / non-liner service tariff; for ships carrying liquid bulks the tariff applicable to oil tankers will be based on. As to the port fee environmental component the HPA will assume that no valid IAPP certificate has been submitted. As to the public-berth fee an HPA quayside berth will be based on.

This procedure will apply if Port Users, despite having been sent a request as provided for in 2.3.2 Port GTC, do not meet their duty to co-operate within the time limit set in the request.

5.6 Person authorised to accept service

Any Port User not operating in the Port of Hamburg, who deploys a seagoing vessel, must name a person operating in the Port of Hamburg authorised to accept service (shipping company, agent, broker or similar natural or legal person) and authorise

them to process the payments due to the Hamburg Port Authority for the use of the port. The Hamburg Port Authority is entitled to bill the port fees and charges payable by the Port User to the person authorised by the Port User to accept service.

5.7 Registration with Cruise Gate Hamburg GmbH

Port Users who use or intend to use the facilities and/or services offered by CGH must register with Cruise Gate Hamburg GmbH ("CGH"), Am Sandtorkai 66, 20457 Hamburg. The duty to co-operate they have towards the HPA remains unchanged.